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IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA.

Jayarathna Mudiyanselage
Dharmasiri Bandara
Accused-Appellant.
H.C.C. No.43/2017

H.C.Monaragala No.14/2016

Vs.

Hon. Attorney General,
Attorney General's Department Colombo 12.

Before

Counsel

Decided on

Complainant-Respondents -
Hon. Justice K.K.Wickremasinghe
Hon. Justice Priyantha Fernando
Nihara Randeniya for the Accused-Appellant.
Sudharashana de Silva DSG for the Respondent.
26/ 02/2020

Hon.Justice K.K. Wickremasinghe.
Accused-Appellant present in Court produced by Prison Authorities.
Learned Counsel appearing for the Accused - Appellant informs Court that he IS withdrawing the appeal against the conviction and further he makes an application to Court to

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backdate the sentence from the date of conviction imposed on the Accused -A ppellan t.

Learned Deputy Solicitor General concedes to back date the sentence from the date of conviction. Accordingly conviction is affirmed. Therefore 10 years rigorous imprisonment is back dated to run from the date of conviction namely 01/03/2017. The default sentence of one year simple imprisonment and default sentence of the fine of Rs. 10,000/= is brought down to 6 months simple imprisonment. Compensation and the default sentence to remain unchanged. Subject to the above variation, the appeal is partly allowed.

Registrar is directed to send copies of this order to the
High Court of Monaragala and the Prison Authorities.

JUDGE OF THE COURT OF APPEAL

K.Priyantha Fernando, J.
I agree.
JUDGE OF THE COURT OF APPEAL
WC /-